

24STCV27219 24STCV27219

County: los-angeles

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-07-22

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Case Number: 24STCV27219 Hearing Date: July 22, 2026 Dept: 1

MOTION

TO ENFORCE SETTLEMENT

Moving Party: Plaintiff Rurik

Hernandez Covarrubias (Lyfe Law, LLP)

Responding Party: Defendant Martin's Power Sweeping, Inc. (Emilio Law Group, APC) (no response filed)

Ruling: Motion GRANTED. Plaintiff to submit a proposed judgment in accordance with their proposed order.

This

is a wage and hour action. On October

20, 2025, plaintiff Rurik Hernandez Covarrubias (Plaintiff) and defendant Martin's Power Sweeping, Inc. (Defendant) stipulated to dismiss this action in consideration of a settlement of Plaintiff's individual claims for \$45,000, to be made in monthly payments of \$5,000. The Court dismissed the action on November 17, 2025, retaining jurisdiction to enforce the settlement pursuant to Code Civ. Proc. § 664.6 and the parties' agreement.

Defendant

made four payments, a total of \$20,000, and then defaulted. (Litwin Decl., ¶¶ 7-11.) Plaintiff now requests judgment for the outstanding balance of \$25,000, as well as \$1,875 in attorney fees. The motion is unopposed.

Code

Civ. Proc. § 664.6(a) provides that a court may, upon motion, enter judgment

pursuant to the terms of the settlement.

The settlement provides that Defendant was to pay \$45,000 in \$5,000 monthly payments, and that “[i]f any legal action is necessary to enforce or interpret this Agreement, the prevailing party shall recover all costs and attorneys’ fees incurred in such enforcement.”

(Litwin Decl., Ex. 1 [settlement], §§ 1, 15.) Plaintiff’s motion is well taken and will be granted.

CONCLUSION

For

the foregoing reasons, the motion is GRANTED.

The Court will sign Plaintiff’s proposed order. Plaintiff is to submit a proposed judgment in accordance with the order and give notice.